

Santosh Kumar Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 July 2018 · WRIT - C No. 74215 of 2010 · **Writ dismissed in default; interim recovery stay vacated.**

HEADNOTE

A consumer challenged a doubled assessment demand, alleging incomplete decision of objections. On 23 December 2010 the Division Bench stayed recovery of the 10 July 2010 demand pending counter-affidavit, without construing clause 8.1(b). After later listings, a subsequent Division Bench dismissed the writ in default on 23 July 2018 and vacated the interim order.

FACTUAL SUMMARY

Santosh Kumar Sharma challenged a 10 July 2010 demand after a 16 December 2008 checking and a 22 December 2008 provisional assessment of Rs 5,53,442. An earlier writ directed a final decision on his objections. He said a 14 March 2009 letter, never served, decided only one objection, and that cash deposit was later accepted after dishonoured cheques. The licensee said the amount was doubled under clause 8.1(b)(iv) of the 2005 Supply Code because those cheques bounced.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal in default of assessment writ

HOLDING

After an interlocutory stay of recovery on the 10 July 2010 demand notice, the writ was dismissed in default for non-prosecution and the interim order vacated, without deciding the Supply Code assessment or doubling issues. ¶ 1,5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DOUBLING THE ASSESSMENT UNDER CLAUSE 8.1(B)(IV) FOR DISHONoured CHEQUES WAS LAWFUL

Respondent relied on paragraph 8.1(b)(iv) as printed in the order; the Court did not interpret the clause. ¶ 1

NOT DECIDED — WHETHER THE 14 MARCH 2009 DECISION ADEQUATELY DISPOSED OF ALL OBJECTIONS TO THE ASSESSMENT

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